25-7026 BERRY V. UNITED STATES

DECISION BELOW: 2026 WL 706333

LOWER COURT CASE NUMBER: 25-12042

QUESTION PRESENTED:

Under the Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA), an appeal may not be taken from a final order in a federal habeas proceeding unless a circuit judge or justice issues a "certificate of appealability" (COA). 28 U.S.C.§ 2253(c (1). A COA may issue only if the prisoner makes a "substantial showing of the denial of a constitutional right." 28 U.S.C. § 2253(c)(2). To do so, the prisoner must show that "reasonable jurists could debate" whether the petition should have been resolved in a different manner. *Slack v. McDaniel*, 529 U.S. 473, A484 (2000).

The question presented is:

Whether a certificate of appealability under 28 U.S.C. § 2253 should be granted where the issue that the petitioner seeks to raise on appeal has been resolved against him by binding circuit precedent but has been resolved in his favor by another circuit.

CERT. GRANTED 10/13/2026